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Thailand

Compilation of information prepared by the Office of the United Nations High Commissioner for Human Rights

I. Background

1. The present report was prepared pursuant to Human Rights Council resolutions 5/1 and 16/21, taking into consideration the outcome of the previous review.[1] It is a compilation of information contained in relevant United Nations documents, presented in a summarized manner owing to word-limit constraints.

II. Scope of international obligations and cooperation with human rights mechanisms

2. The Committee against Torture recommended that Thailand consider acceding to the Second Optional Protocol to the International Covenant on Civil and Political Rights, aiming at the abolition of the death penalty.[2]

3. The United Nations Educational, Scientific and Cultural Organization (UNESCO) recommended that Thailand ratify the Optional Protocol to the International Covenant on Economic, Social and Cultural Rights.[3]

4. The Committee against Torture recommended that Thailand consider ratifying the Optional Protocol to the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment.[4]

5. The United Nations country team recommended that Thailand ratify the International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families.[5]

6. The Committee against Torture and the Committee on the Elimination of Discrimination against Women recommended that Thailand ratify the Convention relating to the Status of Refugees and the Protocol relating to the Status of Refugees, the Convention relating to the Status of Stateless Persons and the Convention on the Reduction of Statelessness.[6]

7. The International Labour Organization (ILO) noted that Thailand had yet to ratify the following two fundamental instruments: the Freedom of Association and Protection of the Right to Organise Convention, 1948 (No. 87), and the Right to Organise and Collective Bargaining Convention, 1949 (No. 98).[7] The Working Group on discrimination against women and girls recommended that Thailand ratify the Violence and Harassment Convention,

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2019 (No. 190), the Migrant Workers (Supplementary Provisions) Convention, 1975 (No. 143), and the Domestic Workers Convention, 2011 (No. 189).[8]

8. UNESCO recommended that Thailand ratify the Convention against Discrimination in Education.[9]

9. Thailand made annual financial contributions to the Office of the United Nations High Commissioner for Human Rights (OHCHR).[10]

III. National human rights framework

1. Constitutional and legislative framework

10. The Committee on the Elimination of Racial Discrimination recommended that Thailand explicitly incorporate the principle of equality and the prohibition of racial discrimination into its constitutional framework, including on the grounds of colour, descent and national origin; and adopt a comprehensive, stand-alone anti-discrimination law that included a definition of racial discrimination covering all grounds of discrimination and encompassed direct and indirect discrimination in both the public and the private spheres.[11]

11. The Committee against Torture welcomed the adoption of the Prevention and Suppression of Torture and Enforced Disappearance Act B.E. 2565 (2022), aimed at strengthening safeguards against and accountability for torture and cruel, inhuman or degrading treatment or punishment, including enforced disappearance. It recommended that Thailand ensure that its domestic legislation was in full conformity with the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment by ensuring that the list of purposes for torture contained in the Act was established as illustrative, rather than exhaustive; and ensure that its legislation clearly provided criminal liability for any superior or commander who was, or should be, aware that a subordinate was carrying out or might carry out an act of torture, but failed to take appropriate action to prevent the act, and that the law on amnesty and any legal exemptions to accountability for State officials did not apply to offences under the Act.[12]

2. Institutional infrastructure and policy measures

12. The Committee against Torture expressed concern that the Organic Act of the National Human Rights Commission of Thailand, adopted in 2017, removed the Commission's power to file lawsuits and provide opinions to the Constitutional Court and the Administrative Court; and that the Commission's regional offices in the southern border provinces might lack the human and technical resources necessary to adequately carry out their mandate.[13]

13. The United Nations country team noted persistent concerns from civil society organizations regarding complaint handling by the National Human Rights Commission of Thailand, raising questions about its provision of timely remedies and protection and contributing to diminished confidence among affected communities and human rights defenders.[14]

14. The Committee against Torture welcomed the adoption of the Fifth National Human Rights Plan (2023–2027), the Fourth National Action Plan on Combating Violence Against Women (2021–2025) and the Second National Action Plan on Business and Human Rights (2023–2027).[15] The United Nations country team recommended that Thailand update national and sectoral human rights action plans, ensuring participatory and inclusive processes, including meaningful engagement of volunteers, and effective implementation through adequate resourcing, monitoring and evaluation, with indicators on health equity, universal health coverage and disparities among groups of people in vulnerable situations.[16]

IV. Promotion and protection of human rights

A. Implementation of international human rights obligations, taking into account applicable international humanitarian law

1. Equality and non-discrimination

15. The Committee on the Elimination of Racial Discrimination expressed concern about reports of intersecting and multiple forms of discrimination faced by women, children, persons with disabilities and lesbian, gay, bisexual, transgender and intersex persons belonging to ethnic and ethno-religious groups or Indigenous Peoples, or those who are migrants, refugees or asylum-seekers. The Committee also expressed concern about reports of various specific barriers faced by those groups in the exercise of their civil, political, economic, social and cultural rights, in particular access to education, healthcare and employment.[17]

2. Right to life, liberty and security of person, and freedom from torture

16. The Committee against Torture expressed concern that courts continued to impose the death penalty, including for drug-related and other offences. A significant number of persons remained on death row, including a significant number of women offenders sentenced for drug-related offences, and death-row inmates had reportedly been excluded from drug rehabilitation and other programmes available to the general prison population.[18] The United Nations country team recommended that Thailand formalize the moratorium on executions; review legislation and policies to reduce application of the death penalty, in line with international standards; improve access to rehabilitation for death-row inmates; and commute sentences where appropriate.[19]

17. The Committee against Torture expressed serious concern about the high number of deaths in custody and about reports that details concerning the circumstances of such deaths were not provided, that authorities routinely failed to carry out credible investigations except in a few high-profile cases that received media attention, and that even where investigations were conducted, they rarely led to criminal prosecutions or reparations for the families.[20]

18. The same Committee expressed concern about allegations of torture and ill-treatment, including excessive use of force by law enforcement authorities, enforced disappearances and torture and ill-treatment in the context of military operations in the southern border provinces; and about allegations of torture and ill-treatment, in some cases resulting in death, of military recruits, noting that the provisions of the Military Discipline Act B.E. 2476 (1933) posed serious risks of abuse and might conflict both with domestic legislation and with the obligations of Thailand under the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment.[21]

19. The same Committee remained concerned that prisons continued to face high levels of overcrowding, an associated lack of staff and deteriorating conditions of detention. It noted with concern that more than 70 per cent of the total prison population had been incarcerated for drug-related offences and more than 20 per cent were pretrial detainees.[22]

20. The same Committee expressed concern about the apparent lack of progress in investigating and prosecuting enforced disappearances, and allegations detailing a pattern of disappearances of Thai political activists abroad and of foreign political activists in Thailand. It recommended that Thailand prosecute all persons suspected of having committed enforced disappearance and, if they were found guilty, ensure that they received sentences that were commensurate with the gravity of their acts and that the victims and/or their family members were afforded appropriate redress and compensation in a timely manner.[23]

3. Administration of justice, including impunity, and the rule of law

21. The Committee on the Elimination of Racial Discrimination remained concerned about the barriers preventing ethnic and ethno-religious groups, Indigenous Peoples, migrants, refugees, asylum-seekers and stateless persons from accessing justice, owing to the remoteness of their localities, language barriers and a limited understanding and awareness of laws and judicial processes among those groups.[24]

22. The Committee against Torture recommended that Thailand review its legislation to ensure that all perpetrators of torture or ill-treatment were held accountable, including by repealing clauses that might serve to provide such perpetrators with criminal or civil immunity.[25]

4. Fundamental freedoms

23. UNESCO recommended that Thailand decriminalize defamation and place it within civil defamation legislation, in accordance with international standards; and ensure a transparency and accountability mechanism in the governance of digital platforms to ensure the upholding of human rights and to mitigate the risks associated with the spread of harmful content online.[26] The United Nations country team made similar recommendations.[27] The Committee on the Elimination of Racial Discrimination expressed concern about reported incidents of incitement to racial hatred and the propagation of racist stereotypes, including in the media and on the Internet and social media, especially incidents involving government officials.[28]

24. The United Nations country team expressed concern about restrictions on freedom of peaceful assembly, particularly under the Public Assembly Act. Some protesters had faced criminal charges for violating limits on designated protest areas, including near government offices. Authorities had imposed temporary bans within set perimeters around State institutions, leading to disputes over permitted boundaries and prosecutions, despite claims that demonstrations were peaceful.[29] The Committee against Torture recommended that Thailand ensure that all persons were protected from any harassment or violence to which they might be exposed as a result of the exercise of their right of freedom of opinion and expression and their rights to freedom of association and peaceful assembly.[30]

25. The Committee against Torture expressed concern about recurring reports of attacks and reprisals against human rights defenders in the country, involving threats, physical attacks, enforced disappearances and killings, including the reported killing of Roning Dalah, a vocal supporter of the right to rehabilitation of torture survivors, on 25 June 2024, the perpetrators of which had yet to be brought to justice. While noting recent amendments to sections 161 and 165 of the Criminal Procedure Code aimed at reducing the use of strategic litigation against public participation, the Committee remained concerned about reports of such litigation continuing to be used to deter human rights defenders from carrying out their work.[31] The same Committee and the Working Group on discrimination against women and girls recommended that Thailand ensure that all human rights defenders were able to carry out their legitimate work in an enabling environment, free from threats, reprisals, violence or other forms of harassment.[32]

5. Right to privacy

26. The United Nations country team noted the adoption of the Artificial Intelligence Ethics Guidelines for Digital Thailand, in 2022, and of the Personal Data Protection Act. It noted that the guidelines lacked enforceable obligations and independent oversight, while broad exemptions under section 4 and the Royal Decree of 17 August 2023 risked enabling arbitrary interference with the right to privacy.[33]

27. The Committee against Torture expressed concern about the alleged use of Pegasus software by State actors to conduct surveillance against and harass women and lesbian, gay, bisexual and transgender human rights defenders, including through the use of online smear campaigns, and about the lack of progress of investigations into those allegations.[34]

6. Right to marriage and family life

28. The Committee on the Elimination of Discrimination against Women expressed concern that Islamic family and inheritance law, applicable in the southern border provinces, was not in line with the the Convention on the Elimination of All Forms of Discrimination against Women, that section 1453 of the Compilation of Civil and Commercial Code prevented women from remarrying for 310 days after divorce or the death of the husband, that women who underwent a religious wedding ceremony without civil marriage registration did not benefit from the same protection, particularly upon dissolution of the union, and that Muslim women faced barriers in gaining access to a divorce under Islamic law and unilateral divorce (*talaq*) was only available to men.[35]

7. Prohibition of all forms of slavery, including trafficking in persons

29. The Committee on the Elimination of Racial Discrimination expressed concern about the prevalence of trafficking in persons and related violations, particularly affecting migrants, refugees, asylum-seekers, ethnic and ethno-religious groups and Indigenous Peoples; about cases involving child labour, forced labour practices, and sexual and labour exploitation of victims of trafficking, particularly in fishing, agriculture, tourism and domestic work; and about the insufficient identification and referral measures for victims of trafficking, and the prevalence of corruption and official complicity in trafficking cases.[36] The United Nations country team noted similar concerns.[37]

30. The Committee on the Elimination of Discrimination against Women expressed concern that women employed in the informal economy, including domestic workers, risked becoming victims of trafficking and forced labour, including online trafficking, yet no labour inspections were conducted in private households, and labour trafficking offences carried significantly lower penalties than other forms of trafficking.[38]

31. The Committee of Experts on the Application of Conventions and Recommendations of the International Labour Organization requested Thailand to ensure that remedies were made available to victims of forced labour, including compensation.[39]

8. Right to work and to just and favourable conditions of work

32. ILO noted that, in Thailand, where nearly two thirds of workers were in informal employment, including 12.7 million workers in agriculture (30 per cent of the country's labour force), gaps in inspection coverage might constrain the observance of labour legislation.[40] The Working Group on discrimination against women and girls recommended that Thailand increase access to formal work for all women and protect those working in the informal sector, ensuring their right to fair remuneration, social security, maternity leave and health and safety at work, including by strengthening its labour rights monitoring mechanism.[41]

33. The Committee on the Elimination of Discrimination against Women expressed concern about the significant gender pay gap, with many women migrant workers and women without documentation earning less than the legal minimum wage in the agricultural sector; women's concentration in the informal economy, including domestic work, and their limited access to labour and social protection, including for women migrant workers; the disproportionate burden of household and childcare responsibilities on women, the fact that pregnant workers in the informal economy were not protected from dismissal and had no access to maternity leave, the fact that breastfeeding facilities were not available in many workplaces and the fact that paternity leave was limited to the public sector; the absence of a legal definition of sexual harassment, which impeded the effective enforcement of the prohibition of sexual harassment in the workplace in the Labour Protection Act (No. 7) B.E. 2541 (1998) and other relevant legislation; and the barriers faced by women migrant workers in changing their employer.[42] The ILO Committee of Experts requested Thailand to explicitly reflect the principle of equal remuneration for men and women for work of equal value.[43]

9. Right to social security

34. The ILO Committee of Experts noted with interest that the number of workers in the informal economy who were insured under section 40 of the Social Security Act B.E. 2533 (1990) had increased every year during the period from 2017 to 2021.[44]

10. Right to an adequate standard of living

35. The Committee on the Elimination of Discrimination against Women noted with concern that some women, such as rural women, including those living in highland and remote areas, continued to face intersecting forms of discrimination. It expressed concern about the poverty affecting Indigenous women and about their limited access to justice, education, employment, healthcare and social protection.[45]

11. Right to health

36. The United Nations country team recommended that Thailand ensure equitable access to affordable, quality healthcare for migrants, displaced persons, stateless persons and persons under screening in the national screening mechanism, including by expanding the coverage of migrant health insurance and universal health coverage and addressing financial, legal and language barriers. It also recommended that Thailand strengthen action on the social determinants of health, including income security, housing, education and safe working conditions; expand equitable access to mental health services; and scale up community-based, integrated, people-centred healthcare and long-term care, including non-communicable disease prevention and screening, particularly for underserved groups.[46]

37. The United Nations country team remained concerned that abortion was not yet fully decriminalized and that access to safe and legal abortion remained severely constrained in practice.[47] The Working Group on discrimination against women and girls recommended that Thailand revise the Penal Code to fully decriminalize abortion, removing all criminal penalties against women seeking abortions and abortion providers.[48]

38. The Committee on the Elimination of Discrimination against Women expressed concern about reports of forced sterilization and coerced abortions of pregnancies of women with disabilities, and about the systematic discrimination they suffered in gaining access to healthcare services, including access to gynaecological and obstetric services.[49]

12. Right to education

39. UNESCO recommended that Thailand guarantee in its legislation at least 12 years of free primary and secondary education; and increase efforts to finance education, by allocating at least 4 to 6 per cent of gross domestic product to education and/or at least 15 to 20 per cent of public expenditure to education, in accordance with international benchmarks.[50]

40. The Committee on the Elimination of Discrimination against Women expressed concern about the limited access to education for girls facing intersecting forms of discrimination, such as women and girls from rural areas, low-income families or Indigenous and ethnic minorities, refugee, stateless and migrant women, or girls and women with disabilities; the high dropout rate among girls due to early pregnancy and among Patani Malay girls due to child marriage and the limited availability of education in Malay; transgender students in schools and universities being subjected to bullying and cyberbullying, leading in some cases to dropout; safety, and inadequate access to education, for girls living in the southern border provinces; and the barriers faced by women in the fields of science, technology, engineering and mathematics, including robotics, autonomous vehicles and biotechnology, to translate their education into employment.[51]

13. Cultural rights

41. The Committee on the Elimination of Racial Discrimination expressed concern that some ethnic and Indigenous languages in Thailand were increasingly at risk of disappearance and that efforts to preserve and develop the culture of some groups in order to help them maintain their cultural identity remained insufficient. It recommended that Thailand protect and preserve the cultural identity of ethnic and ethno-religious groups and Indigenous

Peoples by fostering an enabling environment for them in which they could preserve, develop, express and share their identities, histories, cultures, languages, traditions and customs.[52]

14. Environment, and business and human rights

42. The Committee on the Elimination of Discrimination against Women noted that there was a paucity of knowledge on the disproportionate effect of natural hazards and air pollution on women, including women whose income depended on agriculture and the ocean economy. It also noted the underrepresentation of women among scientists and policymakers supporting the country's efforts to address climate change.[53]

43. The United Nations country team recommended that Thailand overhaul environmental and health impact assessment systems, expedite the enactment of the Clean Air Act, enact a legally binding pollution release and transfer register law and amend the Eastern Economic Corridor Act to ensure compliance with environmental and human rights standards.[54] The Working Group on discrimination against women and girls recommended that Thailand ensure that climate adaptation and resilience policies specifically addressed the gendered impacts of climate change, including increased risks of displacement, economic precarity and gender-based violence, and strengthen women's participation and leadership in disaster response, resource management and sustainable agricultural practices.[55]

44. While welcoming the development of the Act on the Promotion of Responsible Business Conduct as an opportunity to strengthen corporate accountability and align national frameworks with international standards, the United Nations country team recommended that Thailand strengthen the implementation of the National Action Plan on Business and Human Rights and of binding measures, including mandatory human rights due diligence, oversight and effective remedy, while enacting legislation against strategic lawsuits against public participation, and aligning handbooks, standard operating procedures and definitions of human rights defenders with the Declaration on the Right and Responsibility of Individuals, Groups and Organs of Society to Promote and Protect Universally Recognized Human Rights and Fundamental Freedoms, as well as increasing access to justice funds for defenders.[56]

B. Rights of specific persons or groups

1. Women

45. The Committee on the Elimination of Discrimination against Women expressed concern that gender stereotypes, patriarchal norms and harmful practices continued to exacerbate gender-based violence against women, including domestic violence, as well as about the underreporting of gender-based violence against women and girls owing to their lack of trust in law enforcement authorities and fear of retaliation. The Committee also expressed concern about the absence of effective investigation, enforcement and survivor protection mechanisms in the Domestic Violence Victim Protection Act B.E. 2550 (2007), and barriers that women faced in gaining access to justice due to the country's reliance on family reconciliation procedures, insufficient legal support, and language and accessibility barriers.[57] The Committee against Torture expressed similar concerns.[58]

46. The Committee on the Elimination of Discrimination against Women expressed concern about the subjection of women and girls to online gender-based violence, including cyberbullying, doxing and deepfake pornography, as well as the absence of a legal framework prohibiting all forms of sexual harassment and the lenient fines and limited reporting time limits applied in cases of harassment under section 397 of the Penal Code.[59]

47. The United Nations country team and the Working Group on discrimination against women and girls recommended that Thailand expand rural shelters, strengthen one-stop crisis centres and establish inclusive legal aid for all survivors of gender-based violence. Compulsory gender-responsive training for police, healthcare providers, social workers and the judiciary, especially in border and rural areas, remained essential.[60]

48. The Committee against Torture expressed concern about the disproportionate effects felt by women, who experienced high rates of incarceration as a result of strict anti-drug legislation and policies, and concern about allegations that women prisoners were frequently detained far from their families and lacked access to feminine hygiene products, and that pregnant and breastfeeding women faced additional challenges in meeting their specific needs.[61]

49. The Working Group on discrimination against women and girls stated that women's political representation remained a challenge, with consistent underrepresentation in the national parliament and in local government.[62] The Committee on the Elimination of Discrimination against Women expressed concern about the underrepresentation of women, in particular minority women and women of intersectional identity, in political and public life at the national, provincial and local levels and in decision-making positions in the diplomatic service.[63]

2. Children

50. The ILO Committee of Experts urged the Government to continue taking the steps necessary to ensure that thorough investigations and prosecutions of perpetrators of the sale of and trafficking in children, including government officials suspected of complicity and corruption, were carried out and completed, and to ensure that sufficiently effective and dissuasive penalties were imposed; to step up its efforts to ensure that persons who used, procured or offered children under 18 for sexual exploitation were subject to thorough investigations and prosecutions and that sufficiently effective and dissuasive penalties were imposed in practice; to ensure that children who were used, procured or offered for the production of and trafficking in drugs were treated as victims rather than offenders; and to pursue its efforts to identify and rescue child victims of trafficking by providing for their rehabilitation and social integration.[64] The Working Group on discrimination against women and girls recommended that Thailand step up efforts to raise awareness about harmful practices, including female genital mutilation, child marriage and polygamy, working with religious leaders to deconstruct cultural misconceptions and raise awareness of their detrimental effects.[65]

51. The ILO Committee of Experts requested the Government to pursue its efforts to identify and combat child labour and to ensure that all children working in the informal economy, including in the agricultural sector or in own-account work, benefited from the protection provided by the Minimum Age Convention, 1973 (No. 138).[66]

52. The Committee against Torture regretted that corporal punishment of children had not yet been fully prohibited in the home or in alternative care settings. It recommended that Thailand prohibit the use of corporal punishment in all settings, including in the home and in alternative care settings, and raise public awareness of the prohibition of the use of corporal punishment against children and the consequences of corporal punishment, along with the provision of information on the benefits of positive, participatory and non-violent forms of discipline.[67]

3. Older persons

53. The Working Group on discrimination against women and girls noted that, although the Government had taken initiatives to promote the rights of older persons and improve their access to employment and community participation, ageism and gender stereotypes continued to significantly restrict the economic opportunities and financial independence of older women, particularly those from ethnic minority, Indigenous, refugee and stateless communities. Many lived in poverty, with limited access to healthcare and social services, especially due to their undocumented status and remote places of residence.[68]

4. Persons with disabilities

54. The United Nations country team noted that physical and digital barriers continued to limit the independent living and economic participation of persons with disabilities. A persistent digital divide left many without needed assistive technologies and digital skills.[69] Women and girls with disabilities faced intersecting discrimination. Survivor-centred

services, such as shelters and legal aid, remained inaccessible to them, due to physical, transport and communication barriers. Their autonomy and legal capacity were often undermined by substituted decision-making in health systems and social systems. Improvements to disaggregated data on disability were needed to better understand prevalence and service use.[70] The ILO Committee of Experts requested the Government to systematically strengthen and expand specialized training programmes for all staff engaged in vocational guidance, training, placement and employment services for persons with disabilities, including teachers, public employment officers and private-sector human resources professionals.[71]

5. Indigenous Peoples and minorities

55. The United Nations country team noted that the Act on Protection and Promotion of the Way of Life of Ethnic Groups B.E. 2568 (2025) affirmed equality and non-discrimination and guaranteed rights for ethnic groups, including preservation of language and culture, access to community-led education and services and rights to land and natural resources. However, it did not explicitly recognize Indigenous Peoples and only reflected free, prior and informed consent partially, and land rights remained restricted under forestry laws. State natural resource policies prioritized conservation without recognizing Indigenous Peoples' relationship with forests and land. Indigenous communities faced criminalization for traditional land use, often accused of deforestation or forest fires.[72] The Committee on the Elimination of Discrimination against Women expressed similar concerns.[73]

56. The Committee on the Elimination of Discrimination against Women expressed concern about the absence of birth registration of some Indigenous women and girls, leading to their statelessness and limiting their access to justice, land rights and inheritance. It recommended ensuring birth registration and access to nationality for Indigenous women and girls.[74]

6. Lesbian, gay, bisexual, transgender and intersex persons

57. The Working Group on discrimination against women and girls stated that, despite notable legal progress on LGBTIQ+ rights, LBTIQ+ women and girls continued to face discrimination in many areas, including employment, education, housing and healthcare. LBTIQ+ students also experienced high levels of bullying by teachers and peers, leading to serious mental health challenges, which were exacerbated by the shortage of specialized psychosocial care providers for LBTIQ+ youth. It recommended that Thailand combat discrimination based on gender expression and identity as prohibited by the Gender Equality Act, and effectively investigate incidents of discrimination, harassment and hate speech against LBTIQ+ women and girls.[75]

7. Migrants, refugees and asylum-seekers

58. The Committee on the Elimination of Racial Discrimination remained concerned about reports of forced labour and labour exploitation of undocumented migrant workers, especially in fishing, agriculture and domestic work; and the substandard living conditions of migrant workers and the fact that many undocumented migrant workers and members of their families still did not have access to healthcare, education or housing.[76]

59. The United Nations country team stated that refugees and asylum-seekers continued to face arbitrary and prolonged detention for irregular entry or stay, despite the lack of legal pathways to seek international protection: 655 refugees and asylum-seekers had been detained, including 524 Rohingya and 72 children.[77]

60. The Committee on the Elimination of Racial Discrimination expressed concern about the inadequate guarantees against non-refoulement and reports of deportations and forcible returns of Rohingya and other refugees and asylum-seekers who were in need of international protection; and about reports of detention of undocumented migrants, asylum-seekers and refugees for long periods and in poor material conditions, and detention of children and their placement in cells with adult detainees.[78] The Committee on the Elimination of Discrimination against Women recommended that Thailand amend the Immigration Act; establish a national asylum system in compliance with international standards; provide

protection and access to justice and basic services to asylum-seeking and refugee women; and systematically assess their individual risks and specific needs, and implement the measures and guidelines to prevent mothers and their children from being held in immigration detention centres.[79]

61. The Committee against Torture expressed concern about the application of the non-derogable principle of non-refoulement in practice, including with regard to allegations of the mass expulsion of asylum-seekers from Myanmar on 25 June 2024 and the involuntary or forced repatriation of Vietnamese Montagnards, including Y Quynh Bdap, a human rights defender and refugee recognized by the Office of the United Nations High Commissioner for Refugees.[80]

8. Stateless persons

62. The Committee on the Elimination of Racial Discrimination expressed concern that the number of stateless persons remained very high, particularly among ethnic and ethno-religious groups, Indigenous Peoples, migrant workers, refugees and asylum-seekers. It also expressed concern about reports of collection of DNA samples from stateless persons living in southern border provinces and remote areas as a means to prove their right to citizenship.[81] The United Nations country team expressed similar concerns.[82]

C. Specific regions or territories

63. The United Nations country team noted that Martial Law Act B.E. 2457 (1914), Emergency Decree B.E. 2548 (2005) and Internal Security Act B.E. 2551 (2008) had remained in force in the southern border provinces for over two decades. Concerns persisted over extrajudicial killings, coercive DNA profiling of ethnic Malay individuals and online disinformation campaigns targeting human rights defenders. Former detainees had reported torture and psychological abuse, while independent access to detainees remained limited. There was also growing concern about the shrinking of civic space in the region, including a trend of judicial harassment against human rights defenders since 2023. Reports indicated that at least 20 human rights defenders, activists and journalists had faced prosecution linked to their exercise of freedom of peaceful assembly and expression, including activities related to their legitimate human rights work and reporting on matters of public interest.[83]

Notes

1 A/HRC/49/17, A/HRC/49/17/Add.1 and A/HRC/49/2.
2 CAT/C/THA/CO/2, para. 27.
3 UNESCO submission for the universal periodic review of Thailand, p. 1.
4 CAT/C/THA/CO/2, para. 15 (c).
5 United Nations country team submission for the universal periodic review of Thailand, para. 4.
6 CAT/C/THA/CO/2, para. 33 (f); and CEDAW/C/THA/CO/8, para. 46 (g).
7 ILO submission for the universal periodic review of Thailand, p. 1.
8 A/HRC/59/45/Add.2, para. 97 (b).
9 UNESCO submission, p. 7.
10 OHCHR, *United Nations Human Rights Report 2023*, p. 368.
11 CERD/C/THA/CO/4-8, para. 12.
12 CAT/C/THA/CO/2, paras. 5 (e) and 9.
13 Ibid., para. 12.
14 United Nations country team submission, para. 15.
15 CAT/C/THA/CO/2, para. 6 (d)–(f).
16 United Nations country team submission, para. 21.
17 CERD/C/THA/CO/4-8, para. 13.
18 CAT/C/THA/CO/2, para. 26.
19 United Nations country team submission, para. 50.
20 CAT/C/THA/CO/2, para. 28.
21 Ibid., para. 20.
22 Ibid., para. 30.
23 Ibid., paras. 22 and 23 (c).

[24] CERD/C/THA/CO/4-8, para. 39.
[25] CAT/C/THA/CO/2, para. 45.
[26] UNESCO submission, p. 7.
[27] United Nations country team submission, para. 64.
[28] CERD/C/THA/CO/4-8, para. 17.
[29] United Nations country team submission, para. 61.
[30] CAT/C/THA/CO/2, para. 25 (d).
[31] Ibid., para. 40.
[32] Ibid., para. 41; and A/HRC/59/45/Add.2, para. 99 (h)–(k).
[33] United Nations country team submission, para. 70.
[34] CAT/C/THA/CO/2, para. 40. See also CERD/C/THA/CO/4-8, para. 40.
[35] CEDAW/C/THA/CO/8, para. 49 (a) and (c)–(e).
[36] CERD/C/THA/CO/4-8, para. 29.
[37] United Nations country team submission, para. 68.
[38] CEDAW/C/THA/CO/8, para. 27 (a).
[39] ILO submission, p. 2.
[40] Ibid., p. 1. See also United Nations country team submission, para. 76.
[41] A/HRC/59/45/Add.2, para. 100 (a).
[42] CEDAW/C/THA/CO/8, para. 39.
[43] ILO submission, p. 2.
[44] Ibid., p. 4.
[45] CEDAW/C/THA/CO/8, para. 45 (a) and (b).
[46] United Nations country team submission, paras. 82 and 84.
[47] Ibid., para. 81.
[48] A/HRC/59/45/Add.2, para. 97 (j).
[49] CEDAW/C/THA/CO/8, para. 41.
[50] UNESCO submission, p. 7.
[51] CEDAW/C/THA/CO/8, para. 37. See also United Nations country team submission, para. 88.
[52] CERD/C/THA/CO/4-8, paras. 25 (d) and 26 (d). See also UNESCO submission, p. 8.
[53] CEDAW/C/THA/CO/8, para. 47.
[54] United Nations country team submission, para. 41.
[55] A/HRC/59/45/Add.2, para. 100 (i).
[56] United Nations country team submission, paras. 34 and 39.
[57] CEDAW/C/THA/CO/8, para. 25 (a)–(c).
[58] CAT/C/THA/CO/2, para. 36.
[59] CEDAW/C/THA/CO/8, para. 29 (b).
[60] A/HRC/59/45/Add.2, para. 103 (d); and United Nations country team submission, para. 31.
[61] CAT/C/THA/CO/2, para. 30.
[62] A/HRC/59/45/Add.2, para. 5.
[63] CEDAW/C/THA/CO/8, para. 31 (a).
[64] ILO submission, p. 3.
[65] A/HRC/59/45/Add.2, para. 102 (c).
[66] ILO submission, p. 3.
[67] CAT/C/THA/CO/2, paras. 38 and 39.
[68] A/HRC/59/45/Add.2, para. 86.
[69] United Nations country team submission, para. 94.
[70] United Nations country team submission, paras. 93 and 94.
[71] ILO submission, p. 4.
[72] United Nations country team submission, paras. 98 and 99.
[73] CEDAW/C/THA/CO/8, para. 45 (b). See also CERD/C/THA/CO/4-8, paras. 27 and 28.
[74] CEDAW/C/THA/CO/8, paras. 35 (b) and 36 (b).
[75] A/HRC/59/45/Add.2, paras. 90, 91 and 104 (k).
[76] CERD/C/THA/CO/4-8, para. 31.
[77] United Nations country team submission, para. 46.
[78] CERD/C/THA/CO/4-8, para. 33.
[79] CEDAW/C/THA/CO/8, para. 46 (d).
[80] CAT/C/THA/CO/2, para. 34.
[81] CERD/C/THA/CO/4-8, para. 35.
[82] United Nations country team submission, para. 109.
[83] Ibid., paras. 109 and 111.